

An Act

ENROLLED SENATE
BILL NO. 1557

By: Rosino of the Senate

and

Newton of the House

An Act relating to applied behavior analysis; amending 59 O.S. 2021, Section 1928, which relates to licensing of behavior analysts; modifying definitions; transferring certain powers and duties from the Department of Human Services to the State Board of Examiners of Psychologists; granting certain additional power to the Board; requiring a national criminal history record check for applicants; prohibiting certain dissemination of information; updating statutory language and references; modifying certain fee limit; and providing an effective date.

SUBJECT: Applied behavior analysis professional licensure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1928, is amended to read as follows:

Section 1928. A. As used in this ~~act~~ section and Sections 1-280.1, 1-280.2, and 1-280.3 of Title 63 of the Oklahoma Statutes:

1. a. "Applied behavior analysis" means the design, implementation, and evaluation of instructional and environmental modifications to produce socially significant improvements in human behavior through skill, acquisition, and the reduction of problematic behavior. An applied behavior analysis program shall:

- (1) be based on empirical research including the direct observation and measurement of behavior as well as a functional behavior assessment, and
 - (2) utilize antecedent stimuli, positive reinforcement, and other consequences to produce behavior change.
- b. Applied behavior analysis does not include cognitive therapies or psychological testing, neuropsychology, psychotherapy, sex therapy, psychoanalysis, hypnotherapy, and long-term counseling as treatment modalities;

2. "Board" means the ~~nationally accredited Behavior Analyst Certification Board~~ State Board of Examiners of Psychologists;

3. "Certified assistant behavior analyst" means an individual who is certified by the national Behavior Analyst Certification Board as a Board Certified Assistant Behavior Analyst and certified by the State Board of Examiners of Psychologists;

4. "Human services professional" means an individual licensed or certified by the state as one of the following:

- a. a licensed physical therapist or physical therapist assistant pursuant to Sections 887.1 through ~~887.18~~ 887.19 of Title 59 of the Oklahoma Statutes this title,
- b. an occupational therapist, occupational therapy assistant, or occupational therapy aide pursuant to Sections 888.1 through 888.15 of ~~Title 59 of the Oklahoma Statutes~~ this title,
- c. a licensed clinical social worker, licensed masters social worker, or social work associate pursuant to Sections 1250 through 1273 of ~~Title 59 of the Oklahoma Statutes~~ this title,

- d. a psychologist or health service psychologist pursuant to Sections 1351 through 1376 of ~~Title 59 of the Oklahoma Statutes~~ this title,
- e. a licensed speech pathologist, licensed audiologist, speech-language pathologist or audiologist pursuant to Sections 1601 through 1622 of ~~Title 59 of the Oklahoma Statutes~~ this title,
- f. a licensed professional counselor or licensed professional counselor candidate pursuant to Sections 1901 through 1920 of ~~Title 59 of the Oklahoma Statutes~~ this title,
- g. a licensed marital and family therapist or licensed marital and family therapist candidate pursuant to Sections 1925.1 through 1925.18 of ~~Title 59 of the Oklahoma Statutes~~ this title, or
- h. a licensed behavioral practitioner or licensed behavioral practitioner candidate pursuant to Sections 1930 through 1949.1 of ~~Title 59 of the Oklahoma Statutes~~ this title;

~~4. "Certified assistant behavior analyst" means an individual who is certified by the nationally accredited Behavior Analyst Certification Board as a Board-Certified Assistant Behavior Analyst and certified by the Developmental Disabilities Services Division of the Department of Human Services;~~

5. "Licensed behavior analyst" means an individual who is certified by the ~~nationally accredited~~ national Behavior Analyst Certification Board as a ~~Board-Certified~~ Board Certified Behavior Analyst and licensed by the ~~Developmental Disabilities Services Division of the Department~~ State Board of Examiners of Psychologists; and

6. "Supervisee" means a person who acts under the extended authority of a licensed behavior analyst to provide applied behavior analysis services or a person who is in training to provide such services.

B. Each person wishing to practice as a licensed behavior analyst or a certified assistant behavior analyst shall apply to the ~~Developmental Disabilities Services Division of the Department of Human Services~~ State Board of Examiners of Psychologists using a form and in a manner prescribed by the ~~Division~~ Board and shall furnish evidence satisfactory to the ~~Division~~ Board that such person:

1. Is of good moral character;

2. Is at least twenty-one (21) years of age;

3. Has passed the ~~Board~~ applicable examination and is certified by the national Behavior Analyst Certification Board as a ~~Board-Certified~~ Board Certified Behavior Analyst or a ~~Board-Certified~~ Board Certified Assistant Behavior Analyst, as applicable;

4. Has not had a professional license or certification refused, revoked, suspended, or restricted and does not have a complaint, allegation, or investigation pending in any regulatory jurisdiction in the United States or in another country for reasons that relate to unprofessional conduct unless the ~~Division~~ State Board of Examiners of Psychologists finds, to its satisfaction, that the conduct has been corrected or that mitigating circumstances exist that prevent its resolution; and

5. Has at least the minimum graduate or undergraduate degree, appropriate for the level of certification, from an accredited institution of higher learning in a qualifying field of study, as determined by the national Behavior Analyst Certification Board.

C. The State Board of Examiners of Psychologists shall have exclusive power and authority to determine the qualifications and fitness of all applicants for admission to practice as a licensed behavior analyst or certified assistant behavior analyst in this state. The Board shall require that each applicant submit to a national criminal history record check as defined in Section 150.9 of Title 74 of the Oklahoma Statutes. The Board shall not disseminate criminal history record information resulting from the record check.

D. A person holding a state license or state certification shall apply for renewal of the state license or state certification on or before April 30 of each odd-numbered year. The application shall be accompanied by a renewal fee to be set by the ~~Division~~ State Board of Examiners of Psychologists in accordance with paragraph 3 of subsection ~~F~~ G of this section.

~~D.~~ E. A person licensed or certified by the ~~Developmental Disabilities Services Division of the Department~~ Board under this section shall:

1. Maintain active status and fulfill all requirements for renewal of ~~national~~ certification or recertification ~~with~~ by the national Behavior Analyst Certification Board; and

2. Conduct professional activities in accordance with accepted standards such as the ~~Guidelines for Responsible Conduct and Professional Disciplinary Standards~~ Ethics Code for Behavior Analysts of the national Behavior Analyst Certification Board.

~~E.~~ F. 1. No person shall claim the title of licensed behavior analyst or certified assistant behavior analyst unless that person meets the applicable requirements in this section. No person shall practice applied behavior analysis without obtaining a license or certification in accordance with this section. Supervisees may only provide applied behavior analysis under the supervision of a licensed behavior analyst. This section shall not restrict the practice of applied behavior analysis by human services professionals, provided such individuals are working within the scope of their professions and the practice of applied behavior analysis is commensurate with their level of training and experience.

2. A violation of this subsection shall be punishable by a fine ~~of~~ not more than Five Hundred Dollars (\$500.00), the suspension or revocation of ~~a license~~ licensure or certification issued pursuant to this section, or both such fine and loss of licensure or certification.

~~F.~~ G. The ~~Division~~ State Board of Examiners of Psychologists shall:

1. Investigate all complaints relating to:

- a. the practice or supervision of applied behavior analysis by any person licensed by the ~~Developmental Disabilities Services Division of the Department~~ Board as a behavior analyst or certified by the ~~Division~~ Board as an assistant behavior analyst, or
- b. any person alleged to be practicing or providing supervision without a state license or state certification;

2. Refer any substantiated complaints to the national Behavior Analyst Certification Board; and

3. Charge reasonable fees for issuance or renewal of a license or for certification, not to exceed One Hundred Dollars (\$100.00) in an amount sufficient to cover the cost and expense incurred by the State Board of Examiners of Psychologists for such issuance or renewal.

~~G. H.~~ 1. A person having a qualifying degree, as provided for in paragraph 5 of subsection B of this section, and participating in the applied behavior analysis treatment pilot project established in ~~Section 3 of this act~~ Section 1-280.2 of Title 63 of the Oklahoma Statutes shall be exempt from the requirements of this section while such person is actively participating in the project.

2. Persons employed by a school district in this state who provide services solely to the school district under the Individuals with Disabilities Education Act (IDEA), 20 U.S.C., Section 1400 et seq., shall be exempt from the requirements of this section.

~~H. I.~~ The ~~Department~~ State Board of Examiners of Psychologists shall promulgate rules to implement the provisions of this section.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 10th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____